

Name:			
Enrolment No:			
UPES Mid Semester Examination, October 2024			
Programme Name : B.A./ B.B.A./ B. COM. LL.B. Course Name : Environment Studies and Law Course Code : CLCL 3036 No. of page(s) : 2 pages		Semester : V Time : 02 hrs Max. Marks: 100	
Instructions: All questions are compulsory.			
SECTION A (5 Marks *4 = 20 Marks)			
S. No.		Marks	CO
Q 1	Elucidate upon the rule of absolute liability in contrast to strict liability.	5	CO1
Q 2	State the relevant provisions from Bharatiya Nyaya Sanhita 2023 and Bharatiya Nagarik Suraksha Sanhita 2023 in special reference to the Environment	5	CO1
Q 3	‘Stockholm Conference is the Magna Carta on Human Environment’ Elaborate the statement.	5	CO2
Q 4	Interrelate human with the environment vis-à-vis Human rights.	5	CO1
SECTION B (15 Marks * 2 = 30 Marks)			
Q 5	“The polluter pays principle serves several functions and may be used through different phases of policymaking. It can be used in the design of a policy (before the damage has occurred) to prevent or deter environmental damage. In cases where pollution cannot be avoided or is caused by accident, the polluter pays principle can be used to restore or redistribute the costs of environmental damage. Applying this principle helps to incentivize individuals or groups to avoid causing environmental damage and encourage sustainable practices.” Critically analyze the polluter pays principle.	15	CO 3
Q 6	“Climate change refers to long-term shifts in temperatures and weather patterns. These shifts may be natural, such as through variations in the solar cycle. But since the 1800s, human activities have been the main driver of climate change, primarily due to burning fossil fuels like coal, oil and gas.” With reference to the above, explain and analyze the development of climate change law with specific consideration of The United Nations Framework Convention on Climate Change, The Paris Agreement and The Kyoto Protocol.	15	CO 2
SECTION C (50Marks * 1 = 50 Marks)			

Q 7	In the region of Greenridge Hills, situated in the mountainous range of the Nothera Hills, limestone quarrying has been carried out extensively. Mining companies, using unsafe and unregulated methods, have begun blasting large portions of the hills with dynamite to extract limestone. Additionally, illegal deep mining has caused the hillsides to become unstable, leading to frequent landslides. As the hills are stripped of vegetation and the terrain becomes more fragile, landslides have started occurring frequently, resulting in the destruction of homes, livestock, and agricultural lands. Several villagers have lost their lives in these natural disasters, and many are now living in fear of further landslides. Despite existing mining regulations, the state authorities have failed to control or monitor these illegal mining practices. The villagers are seeking justice and want to know what legal remedies are available to protect their land, homes, and livelihoods, and to hold both the mining companies and the state accountable for the environmental damage and loss of life. Apply the relevant provisions of the legislations in the above facts of the case and discuss the legal remedies that the affected villagers can pursue to address the environmental destruction and protect their rights.	50 Marks	CO 4
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